

Chapter 80 Institutional

80.5 Regulations Applying to the Institutional Zone Category

80.5.1 General

80.5.1.10 Interpretation

(1) Application of General Regulations Section

The regulations in Section 80.5 apply to all lands, uses, **buildings** and **structures** in the Institutional Zone category.

(2) Interpretation of the Institutional Zone Symbol

The zone symbol on the Zoning By-law Map for zones in the Institutional Zone category consists of the letters I, IE, IH, IS, or IPW, indicating the primary land use permitted in the respective zone.

80.5.20 Permitted Uses

80.5.20.1 General

(1) Lawfully Existing Public School, Private School

A **lawfully existing public school** or **private school** on a **lot** in the Institutional Zone category is permitted on that **lot**, and:

(A) any expansion or addition to the **lawfully existing public school** or **private school building** must comply with Section 150.48 and the requirements for the zone in which the **lot** is located; and

(B) the **lawfully existing public school** or **private school** may be replaced with a new school **building** that complies with Section 150.48 and the requirements for the zone in which the **lot** is located.

80.5.30 Lot Requirements

80.5.30.1 General

(1) Lot Requirements

Additional **lot** requirements are in each zone in the Institutional Zone category.

80.5.30.11 Lot Area Exemptions

(1) Permitted Lot Area for Lawfully Existing Lots

In the Institutional Zone category, if the **lawful lot area** of a **lawfully existing lot** is less than the required minimum **lot area**, that **lawful lot area** is the minimum **lot area** required for that **lawfully existing lot**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** on a **lot** referred to in regulation 80.5.30.11(1) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance.

80.5.30.21 Lot Frontage Exemptions

(1) Permitted Lot Frontage for Lawfully Existing Lots

In the Institutional Zone category, if the **lawful lot frontage** of a **lawfully existing lot** is less than the required minimum **lot frontage**, that **lawful lot frontage** is the minimum **lot frontage** for that **lawfully existing lot**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** on a **lot** referred to in regulation 80.5.30.21(1) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance.

80.5.30.41 Lot Coverage Exemptions

(1) Permitted Lot Coverage for Lawfully Existing Buildings

In the Institutional Zone category, if the portion of a **lot** covered by **lawfully existing buildings** or **structures** is greater than the permitted maximum **lot coverage**, the **lawful** portion of the **lot** covered by those **lawfully existing buildings** or **structures** is the maximum **lot coverage** for those **lawfully existing buildings** or **structures** on that **lot**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to **lawfully existing buildings** or **structures** referred to in regulation 80.5.30.41(1) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance.

80.5.40 Principal Building Requirements

80.5.40.1 General

(1) Building Requirements

Additional **building** requirements are in each zone in the Institutional Zone category.

80.5.40.10 Height

(1) Determining the Height of a Building

In the Institutional Zone category, the height of a **building** or **structure** is the distance between the average elevation of the ground along the **front lot line** and the elevation of the highest point of the **building** or **structure**.

(2) Height of Specific Structures on a Building

In the Institutional Zone category, the following **structures** on the roof of a **building**, may exceed the permitted maximum height for that **building** by 5.0 metres:

- (A) antennae;
- (B) flagpoles; and
- (C) satellite dishes.

(3) Height of Elements for Functional Operation of a Building

In the Institutional Zone category, the following **structures** on the roof of a **building**, may exceed the permitted maximum height for that **building** by 5.0 metres, subject to regulation 80.5.40.10(4):

- (A) equipment used for the functional operation of the **building**, such as electrical, utility, mechanical and ventilation equipment;
- (B) **structures** or parts of the **building** that are used for the functional operation of the **building**, such as enclosed stairwells, roof access, maintenance equipment storage, elevator shafts, chimneys, vents, and water supply facilities; and
- (C) **structures** that enclose, screen or cover the elements listed in (A) and (B) above.

(4) Height - Horizontal Limits on Elements for Functional Operation of a Building

In the Institutional Zone category, equipment, **structures** or parts of a **building** that exceed the permitted maximum height for a **building** in regulation 80.5.40.10(3), must comply with the following:

- (A) their total area may cover no more than 30% of the area of the roof, measured horizontally; and

(B) if they are located within 6.0 metres of a **lot line** abutting a **street**, their total horizontal dimension, measured parallel to the **street**, may not exceed 20% of the width of the **building's main walls** facing that **street**.

(5) Height of Rooftop Amenity Space Safety and Wind Protection

In the Institutional Zone category, unenclosed **structures** providing safety or wind protection to rooftop **amenity space** on a **building** with a height greater than 15.0 metres, may exceed the permitted maximum height for that **building** by 3.0 metres, if the **structures** are no closer than 2.0 metres from the interior face of any **main wall**.

80.5.40.11 Height Exemptions

(1) Permitted Height for Lawfully Existing Buildings

In the Institutional Zone category, if the **lawful** height of a **lawfully existing building** or **structure** is greater than the permitted maximum height for a **building**, that **lawful** height is the maximum height for that **lawfully existing building** or **structure**.

(2) Additions to Lawfully Existing Buildings -- Height

In the Institutional Zone category, an addition or extension to a **lawfully existing building** or **structure** referred to in regulation 80.5.40.11(1) must comply with the permitted maximum height or be authorized by a Section 45 Planning Act minor variance.

80.5.40.40 Floor Area

(1) Gross Floor Area Calculations

In the Institutional Zone category the **gross floor area** of a **building** is reduced by the area in the **building** used for:

- (A) parking, loading and bicycle parking below-ground;
- (B) required **loading spaces** at the ground level and required **bicycle parking spaces** at or above-ground;
- (C) storage rooms, washrooms, electrical, utility, mechanical and ventilation rooms in the **basement**;
- (D) shower and change facilities and **bicycle maintenance facilities** required by this By-law for required **bicycle parking spaces**; [By-law: 839-2022]
- (E) elevator shafts;
- (F) mechanical penthouse; and
- (G) exit stairwells in the **building**.

(2) Floor Space Index Calculation for a Building

In the Institutional Zone category the floor space index is the result of the **gross floor area** minus the areas of a **building** listed in regulation 80.5.40.40(1) divided by the area of the **lot**.

80.5.40.41 Floor Area Exemptions

(1) Permitted Floor Space Index for Lawfully Existing Buildings

In the Institutional Zone category, if the **lawful gross floor area** of **lawfully existing buildings** on a **lot** results in a floor space index greater than the permitted maximum floor space index, the **lawful** floor space index resulting from those **lawfully existing buildings** on that **lot** is the maximum floor space index for those **lawfully existing buildings** on that **lot**.

80.5.40.60 Permitted Encroachments

(1) Canopies and Awnings

In the Institutional Zone category, despite regulations 5.10.40.70(1) and (2), a canopy, awning or similar **structure**, with or without structural support, may encroach into a required minimum **building setback** that abuts a **street**, if no part of the canopy, awning or similar **structure** is more than 5.0 metres above the elevation of the ground directly below it.

80.5.40.70 Setbacks

(1) Building Setback from a Lane

A **building** or **structure** in the Institutional Zone category may be no closer than 2.5 metres from the original centreline of a **lane**.

80.5.40.71 Setbacks Exemptions

(1) Permitted Setbacks for Lawfully Existing Buildings

In the Institutional Zone category, if the **lawful building setback** of a **lawfully existing building** or **structure** is less than the required minimum **building setback** from:

- (A) a **front lot line**, that **lawful building setback** is the minimum **front yard setback** for that **lawfully existing building** or **structure**;
- (B) a **rear lot line**, that **lawful building setback** is the minimum **rear yard setback** for that **lawfully existing building** or **structure**; or
- (C) a **side lot line**, that **lawful building setback** is the minimum **side yard setback** for that **lawfully existing building** or **structure**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 80.5.40.71(1) must comply with the required minimum **building setbacks** or be authorized by a Section 45 Planning Act minor variance.

(3) Permitted Setbacks for Lawfully Existing Building from a Lane

In the Institutional Zone category, if the **lawful** distance of a **lawfully existing building** or **structure** from the original centreline of a **lane** is less than the required minimum distance from the original centreline of the **lane**, that **lawful** distance is the minimum distance from the original centreline of the **lane** for that **lawfully existing building** or **structure**.

(4) Additions Above Lawfully Existing Buildings in Relation to a Lane

The required minimum distance from the original centreline of a **lane** for any addition or extension above a **lawfully existing building** or **structure** referred to in regulation 80.5.40.71(3) is the minimum distance from the original centreline of the **lane** permitted by regulation 80.5.40.71(3).

80.5.50 Yards

80.5.50.10 Landscaping

(1) Landscaping Requirement When Abutting a Lot in a Residential Zone Category

If a **lot** in the Institutional Zone category abuts a **lot** in the Residential Zone category, a minimum 1.5 metre wide strip of **soft landscaping** must be provided along the part of the **lot line** abutting the **lot** in the Residential Zone category.

80.5.60 Ancillary Buildings and Structures

80.5.60.10 Location

(1) Ancillary Building Location Restriction

In the Institutional Zone category, an **ancillary building** or **structure** may not be located in a **front yard**.

80.5.60.20 Setbacks

(1) Setback of Ancillary Building or Structure

In the Institutional Zone category, an **ancillary building** or **structure** must be set back from a **side lot line** and **rear lot line** the greater of:

- (A) half the height of the **ancillary building** or **structure**; or
- (B) 3.0 metres, if the **lot line** abuts a **lot** in the Residential Zone category or the Residential Apartment Zone category.

80.5.60.40 Height

(1) Height of Ancillary Buildings and Structures

In the Institutional Zone category, the height of an **ancillary building** or **structure** is the distance between **average grade** and the elevation of the highest point of the **ancillary building** or **structure**.

80.5.75 Energy Regulations

80.5.75.1 General

(1) Renewable Energy or Cogeneration Energy Device - Location Restriction

In the Institutional Zone category, a device producing **renewable energy** or **cogeneration energy** on a **lot** may not be in a **front yard** or **side yard** that abuts a **street**.

(2) Renewable Energy Device - Height Requirements

In the Institutional Zone category, a photovoltaic **solar energy** device or a thermal **solar energy** device that is:

- (A) on a **building**:
 - (i) must comply with the required minimum **building setbacks** for a **building** on the **lot**; and
 - (ii) no part of the device may be higher than 2.0 metres above the permitted maximum height for the **building**; and
- (B) ground mounted, the device must comply with the requirements for a **building** or **structure** on the **lot**.

(3) Wind Energy Device - Setbacks

In the Institutional Zone category, a **wind energy** device must comply with the required minimum **building setbacks** for a **building** on the **lot**.

(4) Wind Energy Device - Height

In the Institutional Zone category, no part of the **wind energy** device may exceed the permitted maximum height for a **building** by more than:

- (A) 3.0 metres if:
 - (i) the **wind energy** device is on a **lot** that abuts a **lot** in the Residential Zone category; or
 - (ii) the **building** is less than 25 metres in height; and
- (B) 5.0 metres in all other cases.

(5) Geo-energy Requirements

In the Institutional Zone category, any above-ground part of a **geo-energy** device must comply with the requirements for a **building** or **structure** on the **lot**.

(6) Cogeneration Device

In the Institutional Zone category, a **cogeneration energy** device must be located inside a permitted **building**.

80.5.80 Parking

80.5.80.1 General

(1) Required Parking Space

A **parking space** required by this By-law for a use in the Institutional Zone category must be available for the use for which it is required.

80.5.80.10 Location

(1) Location of Required Parking Spaces

A **parking space** must be on the same **lot** as the use for which the **parking space** is required.

(2) Off-Site Parking Spaces

Despite regulation 80.5.80.10(1), in the Institutional Zone category a required **parking space** may be located on an abutting **lot** in the same zone.

80.5.80.30 Separation

(1) Parking Separation from Lot Line

In the Institutional Zone category, an area used for the parking or storage of 3 or more **vehicles** must be separated by a minimum 1.5 metres wide strip of **soft landscaping** from a **lot line** that abuts a **street** or **lane**.

(2) Parking Restriction When Abutting the Residential Zone Category

If a **lot** in the Institutional Zone category abuts a **lot** in the Residential Zone category, an area used for the parking or storage of 3 or more **vehicles** may be in a **rear yard** or **side yard**, if a fence is installed along the part of the **lot line** that abuts the **lot** in the Residential Zone category.

80.5.100 Access to Lot

80.5.100.10 Location

(1) Access to Non-Residential Uses when Adjacent to a Lot in the Residential Zone Category - Restriction on Sole Access from a Lane or Shared Private Right-of-Way

A **lot** in the Institutional Zone category may be used for parking for a use on an adjacent **lot**, if it does not front on a **street** and has its only **vehicle** access from a **lane** or private right-of-way that abuts a **lot** in the Residential Zone category.

(2) Driveway Access to a Lot - Crossing Landscaping Area

In the Institutional Zone category, a **driveway** may cross a required **landscaping** area.

(3) Access to Parking Areas Adjacent to a Lot in the Residential Zone Category

If a **lot** in the Institutional Zone category abuts a **lot** in the Residential Zone category **vehicle** access to a **parking space** may not be over any part of a **lot** in the Residential Zone category;

(4) Loading Restrictions Adjacent to a Lot in the Residential Zone Category or Residential Apartment Zone category

If a **lot** in the Institutional Zone category abuts a **lot** in the Residential Zone category or the Residential Apartment Zone category:

- (A) **vehicle** access to a **loading space** may not cross any part of a **lot** in the Residential Zone category or the Residential Apartment Zone category; and

- (B) any part of a **lot line** abutting a **lot** in the Residential Zone category or the Residential Apartment Zone category must be fenced.

80.10 Institutional General Zone (I)

80.10.1 General

80.10.1.10 Interpretation

(1) Application of This Section

The regulations in Section 80.10 apply to all lands, uses, **buildings** and **structures** in the I zone.

(2) Medical Office

In the I zone, a medical office includes a medical clinic.

80.10.20 Permitted Uses

80.10.20.10 Permitted Use

(1) Use - I Zone

In the I zone, the following uses are permitted:

Art Gallery
Club
Community Centre
Hospice Care Home
Library
Massage Therapy
Medical Office
Municipal Shelter
Museum
Nursing Home
Park
Recreation Use
Religious Education Use
Religious Residence
Respite Care Facility
Retirement Home
Wellness Centre [By-law: 545-2019]

80.10.20.20 Permitted Use - with Conditions

(1) Use with Conditions - I Zone

In the I zone, the following uses are permitted if they comply with the specific conditions associated with the reference number(s) for each use in Clause 80.10.20.100:

Ambulance Depot (16)
Automated Banking Machine (10)
Cogeneration Energy (22)
Crisis Care Shelter (12)
Day Nursery (6)
Drive Through Facility (23)
Eating Establishment (2)(7)
Financial Institution (3)
Fire Hall (17)
Group Home (13)
Personal Service Shop (4)
Place of Assembly (5)
Place of Worship (15)

Police Station (18)
Private School (9)
Public Parking (1)(8)
Public School (9)
Public Utility (19) (20)
Renewable Energy (22)
Residential Care Home (13)
Retail Store (2)
Secondary Suite (24)
Student Residence (11)
Take-out Eating Establishment (2)(7)
Transportation Use (21) [By-law: 545-2019]

80.10.20.100 Conditions

(1) Public Parking Abutting a Lot in the Residential Zone Category

In the I zone, **vehicle** access to **public parking** may not be over any part of a **lot** in the Residential Zone category.

(2) Retail Store, Eating Establishment and Take-out Eating Establishment

In the I zone:

- (A) the **interior floor area** for each **retail store**, **eating establishment** and **take-out eating establishment** on a **lot** may not exceed 465 square metres; and
- (B) the total **interior floor area** used for all **retail stores**, **eating establishments** and **take-out eating establishments** on a **lot** may not exceed 0.3 times the **lot area**.

(3) Financial Institution

In the I zone, the **interior floor area** of a **financial institution** may not exceed 250 square metres.

(4) Personal Service Shop

In the I zone, the **interior floor area** of a **personal service shop** may not exceed 250 square metres.

(5) Place of Assembly

In the I zone, the **interior floor area** of a **place of assembly** may not exceed the lesser of:

- (A) 4000 square metres; or
- (B) 75% of the area of the **lot** covered by all **buildings** on the **lot**.

(6) Day Nursery

A **day nursery** in the I zone may not be located above the first **storey** of a **building**.

(7) Size Restriction on Eating Establishments Near or Abutting a Lot in the Residential Zone Category

If a **lot** in the I zone is within 6.1 metres of a **lot** in the Residential Zone category, the total **interior floor area** of all **eating establishments** and **take-out eating establishments** on the **lot** may not exceed 400 square metres.

(8) Public Parking Attendant Shelter

In the I zone, one **building** for parking attendants is permitted on a **lot** with a **public parking** use, if it:

- (A) has a maximum height of 4.0 metres, including all mechanical equipment;
- (B) has a maximum **interior floor area** of 5.0 square metres; and
- (C) is at least 6.0 metres from a **lot line** abutting a **street**.

(9) Public School, Private School

In the I zone, a **public school** and **private school** must comply with the specific use regulations in Section 150.48.

(10) Automated Banking Machine

In the I zone, an **automated banking machine** must be in a **building**.

(11) Student Residence

A **student residence** must be operated by a **public school** or **private school** on the same **lot**.

(12) Crisis Care Shelter

In the I zone, a **crisis care shelter** must comply with the specific use regulations in Section 150.20.

(13) Group Home or Residential Care Home

In the I Zone, a **group home** or a **residential care home** must comply with the specific use regulations in Section 150.15.

(15) Place of Worship

In the I zone, a **place of worship** must comply with the specific use regulations in Section 150.50.

(16) Ambulance Depot

In the I zone, an ambulance depot must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is not more than 250 metres from that intersection.

(17) Fire Hall

In the I zone, a fire hall must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is not more than 250 metres from that intersection.

(18) Police Station

In the I zone, a police station must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(19) Public Utility

In the I zone, a **public utility** may not be:

- (A) a sewage treatment plant;
- (B) a water filtration plant; or
- (C) an above-ground water reservoir.

(20) Public Utility

In the I zone, a **public utility** must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setbacks** and permitted maximum height for a **building** in the I zone if it is:

- (A) a hydro electrical transformer station; or [By-law: OMB PL130592 February 7, 2017]
- (B) a natural gas regulator station.

(21) Transportation Use

A **building** or **structure** on a **lot** in the I zone and used as a **transportation use** must comply with all requirements for a **building** on that **lot**.

(22) Renewable Energy Production or Cogeneration Energy Production

In the I zone, **renewable energy** production or **cogeneration energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(23) Drive Through Facility

In the I zone, a **drive through facility** must comply with the specific use regulations in Section 150.80.

(24) Secondary Suite

In the I zone, a **secondary suite** must comply with the specific use regulations in Section 150.10.

80.10.30 Lot Requirements

80.10.30.20 Lot Frontage

(1) Minimum Lot Frontage

In the I zone, the required minimum **lot frontage** is 20.0 metres

80.10.30.40 Lot Coverage

(1) Maximum Lot Coverage

In the I zone, if a **lot**:

- (A) is in an area with a numerical value on the Lot Coverage Overlay Map, that numerical value is the permitted maximum **lot coverage**, as a percentage of the **lot area**; or
- (B) is not in an area with a numerical value on the Lot Coverage Overlay Map, the permitted maximum **lot coverage** is 35%.

80.10.40 Principal Building Requirements

80.10.40.10 Height

(1) Maximum Height

If a **lot** in the I zone is in an area that has:

- (A) a numerical value following the letters "HT" on the Height Overlay Map, the permitted maximum height of a **building** or **structure** is the numerical value in metres on the Height Overlay Map; and
- (B) no numerical value following the letters "HT" on the Height Overlay Map, the permitted maximum height of a **building** or **structure** on the **lot** is 15.0 metres.

(2) Height of Buildings and Structures - Green Roof

In the I zone, a parapet wall for a **green roof** may exceed the permitted maximum height for a **building** by 2.0 metres.

80.10.40.40 Floor Area

(1) Floor Space Index

In the I zone, the permitted maximum floor space index is:

- (A) the numerical value following the zone symbol on the Zoning By-law Map; or
- (B) 1.0, if the zone symbol is not followed by a numerical value on the Zoning By-law Map. [By-law: 0559-2014 (OMB PL130592)] [By-law: 1124-2018]

80.10.40.41 Floor Area Exemptions

(1) Floor Area Exemptions

Regulation 80.10.40.40(1) does not apply to a **transportation use** along Eglinton Avenue West and Eglinton East, provided that the maximum floor area is no greater than 2 times the area of the lot. [103-2016] [By-law: 1031-2014]

80.10.40.50 Decks, Platforms and Amenities

(1) Amenity Space Requirement

In the I zone, a minimum of 0.9 square metres of **amenity space** must be provided for each **dwelling unit** and **bedsitting room** in a **building** and a minimum of 75% of the **amenity space** must be within a **building**.

80.10.40.60 Permitted Encroachments

(1) Canopy Encroachments

In the I zone, a canopy, awning or similar **structure**, with or without structural support, may encroach into a required minimum **building setback** a maximum of 4.0 metres, if no part of the canopy, awning or similar **structure** is more than 5.0 metres above the elevation of the ground directly below it.

(2) Permitted Encroachments - Exterior Stairs, Access Ramp and Elevating Device

In the I zone:

(A) exterior stairs providing access to a **building** or **structure** may encroach into a required minimum **building setback**, if the stairs are:

- (i) no longer than 1.5 horizontal units for each 1.0 vertical unit above the ground at the point where the stairs meet the **building** or **structure**;
- (ii) no wider than 2.0 metres; and
- (iii) no closer to a **lot line** than 0.3 metres; and

(B) an uncovered ramp providing pedestrian access to a **building** or **structure** may encroach into a required minimum **building setback**, if the ramp is:

- (i) no longer than 15 horizontal units for each 1.0 vertical unit above the ground at the point where the ramp meets the **building** or **structure**;
- (ii) no wider than 1.5 metres for each sloped ramp segment; and
- (iii) no closer to a **lot line** than 0.3 metres; and

(C) an elevating device providing access to a **building** or **structure** may encroach into a required minimum **building setback**, if the elevating device:

- (i) elevates no higher than the first **storey** of the **building**;
- (ii) has a maximum area of 3.0 square metres; and
- (iii) is no closer to a **lot line** than 0.3 metres.

80.10.40.70 Setbacks

(1) Building Setback Policy Areas 1 to 3

If a **lot** in the I zone is located in Policy Area 1 (PA1), Policy Area 2 (PA-2) or Policy Area 3 (PA-3) on the Policy Areas Overlay Map, a **building** or **structure** on that **lot** must be set back:

- (A) no more than 3.0 metres from a **front lot line**;
- (B) a minimum of 5.5 metres from a **side lot line** that does not abut a **street** or **lane** if the **main wall** of a **building** facing the **side lot line** has windows;
- (C) 3.0 metres from a **rear lot line** or **side lot line** that abuts a **lot** in the Residential Zone category; and
- (D) in all other cases, no **building setback** is required.

(2) Building Setback in other than Policy Areas 1 to 3

If a **lot** in the I zone is not located in Policy Area 1 (PA1), Policy Area 2 (PA-2) or Policy Area 3 (PA-3) on the Policy Areas Overlay Map, a **building** or **structure** must be set back from a **lot line** a distance equal to half the height of the **building**.

80.10.40.71 Setbacks Exemptions

(1) Setback Exemptions

Regulations 80.10.40.70(1) and (2) do not apply to a **transportation use** along Eglinton Avenue West and Eglinton Avenue East provided that the setbacks are between 0 and 40 metres. [103-2016] [By-law: 1031-2014]

80.10.50 Yards

80.10.50.10 Landscaping

(1) Front Yard Landscaping

In the I zone, the entire **front yard** excluding a permitted **driveway** must be **landscaping**, and a minimum of 75% of the **front yard landscaping** must be **soft landscaping**.

(2) Soft Landscaping Requirement

In the I zone, a minimum of 50% of the area of the **lot** not covered by **buildings** or **structures** must be **soft landscaping**.

80.10.50.11 Landscaping Exemptions

(1) Landscaping Exemptions

Regulations 80.10.50.10(1) and (2) do not apply to a **transportation use** along Eglinton Avenue West and Eglinton Avenue East. [103-2016] [By-law: 1031-2014]

80.10.80 Parking

80.10.80.20 Setbacks

(1) Parking Space to be Set Back from a Lot Line

A **parking space** which is not in a **building** or **structure** must be at least 0.5 metres from a **lot line**.

80.10.90 Loading

80.10.90.10 Location

(1) Loading Space Location

A **loading space** may not be in:

- (A) a **front yard**;
- (B) a **side yard** abutting a **street**; or
- (C) any **side yard** or **rear yard** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

80.10.90.11 Location Exemptions

(1) Loading Space Location Exemption

If a **lawfully existing building** has a **lawful loading space** that does not comply with the **loading space** location requirements in regulation 80.10.90.10(1), that **lawful loading space** is exempt from the requirements of regulation 80.10.90.10(1).

80.10.150 Waste

80.10.150.1 General

(1) Waste and Recyclable Materials Storage

In the I zone:

- (A) all waste and **recyclable material** must be stored in a wholly enclosed **building**, if a **building** is constructed pursuant to a building permit issued more than three years after May 9, 2013; and
- (B) if the waste and **recyclable material** is stored in an **ancillary building**, the **ancillary building**:
 - (i) may not be in a **side yard** that abuts a **street** or in a **front yard**; and
 - (ii) must be at least:
 - (a) 7.5 metres from a **lot** in the Residential Zone category, Residential Apartment Zone category or Open Space Zone category; and
 - (b) 1.0 metres from all other **side lot lines** and **rear lot lines**.

80.20 Institutional Hospital Zone (IH)

80.20.1 General

80.20.1.10 Interpretation

(1) Application of This Section

The regulations in Section 80.20 apply to all lands, uses, **buildings** and **structures** in the IH zone.

80.20.20 Permitted Uses

80.20.20.10 Permitted Use

(1) Use - IH Zone

In the IH zone, the following uses are permitted:

Education Use

Hospice Care Home

Hospital

Massage Therapy

Medical Office

Municipal Shelter

Park

Wellness Centre [By-law 1353-2015] [By-law: 545-2019] [By-law: 451-2022]

80.20.20.20 Permitted Use - with Conditions

(1) Use with Conditions - IH Zone

In the IH zone, the following uses are permitted if they comply with the specific conditions associated with the reference number(s) for each use in Clause 80.20.20.100:

Ambulance Depot (12)

Automated Banking Machine (3)

Cogeneration Energy (18)

Crisis Care Shelter (8)

Day Nursery (7)

Eating Establishment (4,11)

Financial Institution (5)

Fire Hall (13)

Laboratory (9)

Nursing Home (1)

Office (2)

Personal Service Shop (4,11)

Place of Worship (22)

Police Station (14)

Post-Secondary School (20)

Public Parking (6,10)

Public Utility (15) (16)

Renewable Energy (18)

Respite Care Facility (1)

Retail Store (4,11)

Retirement Home (1)

Secondary Suite (21)

Student Residence (1)

Take-out Eating Establishment (4,11)
Transportation Use (17) [By-law: 1353-2015] [By-law: 545-2019]

80.20.20.100 Conditions

- (1) Nursing Home, Retirement Home, Student Residence, Respite Care Facility
In the IH zone, a **nursing home**, a **retirement home**, a **student residence**, or a **respite care facility** must be in a **building** operated by or on behalf of a **hospital**.
- (2) Office
In the IH zone, an office must be in a **building** operated by or in association with a **hospital**.
- (3) Automated Banking Machine
In the IH zone, an **automated banking machine** must be in a **building**.
- (4) Retail Store, Personal Service Shop, Eating Establishment and Take-out Eating Establishment
In the IH zone, a **retail store**, **personal service shop**, **eating establishment** or **take-out eating establishment** are subject to the following:
 - (A) they must be in a **hospital building**;
 - (B) each **retail store**, **personal service shop** or **eating establishment** may not have an **interior floor area** greater than 150 square metres;
 - (C) the total **interior floor area** for all **retail stores**, **personal service shops** and **eating establishments** on a **lot** may not exceed 30% of the **interior floor area** of the first **storey** of the **hospital building**;
and
 - (D) regulations (B) and (C) above do not apply to a cafeteria that is **ancillary** to the **hospital**.
- (5) Financial Institution
In the IH zone, a **financial institution** must:
 - (A) be in a **hospital building**; and
 - (B) have an **interior floor area** no greater than 150 square metres.
- (6) Public Parking Attendant Shelter
In the IH zone, one **building** for parking attendants is permitted on a **lot** with a **public parking** use, if it:
 - (A) has a maximum height of 4.0 metres, including all mechanical equipment;
 - (B) has a maximum **interior floor area** of 5.0 square metres; and
 - (C) is at least 6.0 metres from a **lot line** abutting a **street**.
- (7) Day Nursery
In the IH zone, a **day nursery** must be in a **hospital building**.
- (8) Crisis Care Shelter
In the IH zone, a **crisis care shelter** must:
 - (A) be on a **lot** that has a permitted maximum floor space index of 7.0 or greater; and
 - (B) comply with the specific use regulations in Section 150.20. [By-law: 607-2015]
- (9) Laboratory
In the IH zone, a **laboratory** must be:
 - (A) operated by, or in association with, a **hospital**; or
 - (B) used for research limited to medical or health sciences.
- (10) Public Parking Abutting a Lot in the Residential Zone Category
In the IH zone, **vehicle** access to the **public parking** may not be over any part of a **lot** in the Residential Zone category.
- (11) Size Restriction on Establishments Near or Abutting a Lot in the Residential Zone Category

If a **lot** in the IH zone is within 6.1 metres of a **lot** in the Residential Zone category, access to a **retail store, personal service shop, eating establishment or take-out eating establishment** must be from inside the **hospital building**.

(12) Ambulance Depot

In the IH zone, an ambulance depot must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(13) Fire Hall

In the IH zone, a fire hall must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(14) Police Station

In the IH zone, a police station must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(15) Public Utility

In the IH Zone, a **public utility** may not be:

- (A) a sewage treatment plant;
- (B) a water filtration plant; or
- (C) an above-ground water reservoir.

(16) Public Utility

In the IH zone, a **public utility** must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setbacks** and permitted maximum height for a **building** in the IH zone if it is:

- (A) a hydro electrical transformer station; or [By-law: OMB PL130592 February 7, 2017]
- (B) a natural gas regulator station.

(17) Transportation Use

A **building** or **structure** on a **lot** in the IH zone and used as a **transportation use** must comply with all requirements for a **building** on that **lot**.

(18) Renewable Energy Production or Cogeneration Energy Production

In the IH zone, **renewable energy** production or **cogeneration energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(20) Post-Secondary School

In the IH zone, a **post-secondary school** must be:

- (A) for education in medicine, dentistry or other health sciences; or
- (B) in association with a **hospital**; [By-law: 1276-2022(OLT)]

(21) Secondary Suite

In the IH zone, a **secondary suite** must comply with the specific use regulations in Section 150.10.

(22) Place of Worship

In the IH zone, a **place of worship** must:

- (A) comply with the specific use regulations in Section 150.50;
- (B) be on the same **lot** as a **hospital** or a **hospice care home**; and

(C) be in a **building** with no more than 5,000 square metres of **gross floor area**, unless it is inside a **hospital**.

80.20.30 Lot Requirements

80.20.30.20 Lot Frontage

(1) Minimum Lot Frontage

The required minimum **lot frontage** in the IH zone is 30 metres.

80.20.30.40 Lot Coverage

(1) Maximum Lot Coverage

In the IH zone, if a **lot**:

- (A) is in an area with a numerical value on the Lot Coverage Overlay Map, that numerical value is the permitted maximum **lot coverage**, as a percentage of the **lot area**; or
- (B) is not in an area with a numerical value on the Lot Coverage Overlay Map, no **lot coverage** applies.

80.20.40 Principal Building Requirements

80.20.40.10 Height

(1) Maximum Height

If a **lot** in the IH zone is in an area that has a numerical value following the letters "HT" on the Height Overlay Map, the permitted maximum height of a **building** or **structure** is the numerical value in metres on the Height Overlay Map. If no numerical number follows the letters "HT" on the Height Overlay Map the maximum height is not limited by this regulation.

(2) Height of Buildings and Structures - Green Roof

In the IH zone, a parapet wall for a **green roof** may exceed the permitted maximum height for a **building** by 2.0 metres.

(3) Height of Buildings and Structures - Helicopter Landing Pad

In the IH zone, a permitted helicopter landing pad on the roof of a **hospital building** may exceed the permitted maximum height for the **building** by 3.0 metres, if the highest part of the landing pad is no more than 3.0 metres above the surface level of the roof.

80.20.40.40 Floor Area

(1) Floor Space Index

In the IH zone, the permitted maximum floor space index is:

- (A) the numerical value following the zone symbol on the Zoning By-law Map; or
- (B) 1.0, if the zone symbol is not followed by a numerical value on the Zoning By-law Map. [By-law: 0559-2014 (OMB PL130592)] [By-law: 1124-2018]

80.20.40.60 Permitted Encroachments

(1) Permitted Encroachments into Required Yards - Access Ramp and Elevating Device

In the IH zone:

- (A) an uncovered ramp providing access to a **building** or **structure** may encroach into a required minimum **building setback** if the ramp is:
- (i) no longer than 15 horizontal units for each 1.0 vertical unit above the ground at the point where the ramp meets the **building** or **structure**;
 - (ii) no wider than 1.5 metres for each sloped ramp segment; and
 - (iii) no closer than 0.6 metres to a **lot line**; and
- (B) an elevating device providing access to a **building** or **structure** may encroach into a required minimum **building setback**, if the elevating device:
- (i) elevates no higher than the first **storey** of the **building**;
 - (ii) has a maximum area of 6.0 square metres; and
 - (iii) is no closer than 0.6 metres from a **lot line**.
- (2) Canopies and Awnings - Five Metres or Less Above Grade
In the IH zone, a canopy, awning or similar **structure**, with or without structural support, may encroach into a required minimum **building setback** a maximum of 4.0 metres, if no part of the canopy, awning or similar **structure** is more than 5.0 metres above the elevation of the ground directly below it.
- (3) Canopies and Awnings - More Than Five Metres Above Grade
In the IH zone, a canopy, awning or similar **structure**, with or without structural support, may encroach into a required minimum **building setback** a maximum of 2.5 metres if:
- (A) it is more than 5.0 metres above the elevation of the ground directly below it; and
 - (B) it is at least 0.6 metres from a **lot line**.

80.20.40.70 Setbacks

- (1) Minimum Front Yard Setback
The required minimum **front yard setback** in the IH zone is:
- (A) zero metres if the **lot** is in the Policy Area 1 (PA1) on the Policy Areas Overlay Map; and
 - (B) 7.5 metres in all other cases.
- (2) Minimum Rear Yard Setback
In the IH zone, the required minimum **rear yard setback** is:
- (A) the greater of 7.5 metres or half the height of the **building**, if the **rear lot line** abuts a **lot** in the Residential Zone category; and
 - (B) 7.5 metres in all other cases.
- (3) Minimum Side Yard Setback
The required minimum **side yard setback** for a **lot** in the IH zone is:
- (A) if the **lot** is located in Policy Area 1 (PA1) on the Policy Areas Overlay Map:
 - (i) zero metres if the **side lot line** does not abut a **lot** in the Residential Zone category; and
 - (ii) the greater of 7.5 metres or half the height of the **building**, if the **side lot line** abuts a **lot** in the Residential Zone category; and
 - (B) if the **lot** is not located in the Policy Area 1 (PA1) on the Policy Areas Overlay Map:
 - (i) 7.5 metres if the **side lot line** abuts a **street**; and
 - (ii) in all other cases, the greater of 7.5 metres or half the height of the **building**.

80.20.60 Ancillary Buildings and Structures

80.20.60.20 Setbacks

(1) Ancillary Building or Structure to be Set Back

In the IH zone an **ancillary building** or **structure** may be no closer to a **side lot line** or **rear lot line**, that does not abut a **street**, than the greater of 1.5 metres or half the height of the **ancillary building** or **structure**.

(2) Building Setback from a Street

In the IH zone, no part of an **ancillary building** or **structure** may be closer to a **lot line** that abuts a **street** than any **main wall** of the main **buildings** on the **lot**.

80.20.60.70 Lot Coverage

(1) Lot Coverage - Ancillary Buildings

In the IH zone, the permitted maximum **lot coverage** for **ancillary buildings** and **structures** is 15% of the **lot area**.

80.20.80 Parking

80.20.80.20 Setbacks

(1) Parking Space to be Set Back from a Lot Line

In the IH zone, a **parking space** which is not in a **building** or **structure** must be at least 0.5 metres from a **lot line**.

(2) Parking Spaces to be Set Back from a Lot in the Residential Zone Category

In the IH zone, an area used for the parking or storage of more than 3 **vehicles** may be no closer than 7.5 metres from a **lot line** that abuts a **lot** in the Residential Zone category.

80.20.90 Loading

80.20.90.10 Location

(1) Loading Space Location

A **loading space** may not be in:

- (A) a **front yard**;
- (B) a **side yard** abutting a **street**; or
- (C) any yard that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

80.20.90.11 Location Exemptions

(1) Loading Space Location Exemption

If a **lawfully existing building** has a **lawful loading space** that does not comply with the **loading space** location requirements of regulation 80.20.90.10(1), that **lawful loading space** is exempt from the requirements of regulation 80.20.90.10(1).

80.20.150 Waste

80.20.150.1 General

(1) Storage of Waste

In the IH zone:

- (A) all waste and **recyclable material** must be stored in a wholly enclosed **building**, if a **building** is constructed pursuant to a building permit issued more than three years after May 9, 2013; and
- (B) if the waste and **recyclable material** is stored in an **ancillary building**, the **ancillary building**:
 - (i) may not be in a **side yard** that abuts a **street** or in a **front yard**; and
 - (ii) must be at least:
 - (a) 7.5 metres from a **lot** in the Residential Zone category, Residential Apartment Zone category or Open Space Zone category; and
 - (b) 1.0 metres from all other **side lot lines** and **rear lot line**.

80.30 Institutional Education Zone (IE)

80.30.1 General

80.30.1.10 Interpretation

(1) Application of This Section

The regulations in Section 80.30 apply to all lands, uses, **buildings** and **structures** in the IE zone.

80.30.20 Permitted Uses

80.30.20.10 Permitted Use

(1) Use - IE Zone

In the IE zone, the following uses are permitted:

Art Gallery
Automated Banking Machine
Club
Library
Massage Therapy
Municipal Shelter
Museum
Park
Performing Arts Studio
Place of Assembly
Post-Secondary School
Production Studio
Recreation Use
Religious Education Use
Student Residence
Wellness Centre [By-law: 545-2019]

80.30.20.20 Permitted Use - with Conditions

(1) Use with Conditions - IE Zone

In the IE zone, the following uses are permitted if they comply with the specific conditions associated with the reference number(s) for each use in Clause 80.30.20.100:

Ambulance Depot (14)
Cogeneration Energy (20)
Community Centre (10)
Day Nursery (9)
Eating Establishment (4)(13)
Entertainment Place of Assembly (7)
Financial Institution (5)
Fire Hall (15)
Laboratory (11)
Medical Office (3)
Office (3)
Personal Service Shop (6)
Place of Worship (23)
Police Station (16)
Public Parking (1)(12)
Public Utility (17)(18)

Renewable Energy (20)
Retail Store (8)
Secondary Suite (22)
Software Development and Processing (2)
Sports Place of Assembly (7)
Take-out Eating Establishment (4)(13)
Transportation Use (19) [By-law: 545-2019]

80.30.20.100 Conditions

- (1) Public Parking Attendant Shelter
In the IE zone, one **building** for parking attendants is permitted on a **lot** with a **public parking** use, if it:
 - (A) has a maximum height of 4.0 metres, including all mechanical equipment;
 - (B) has a maximum **interior floor area** of 5.0 square metres; and
 - (C) is at least 6.0 metres from a **lot line** abutting a **street**.
- (2) Software Development and Processing
In the IE zone, a **software development and processing** use must be operated by or be in association with a **post-secondary school**.
- (3) Office or Medical Office
In the IE zone, an office or medical office must be in association with a **post-secondary school** on the **lot**.
- (4) Eating Establishment and Take-out Eating Establishment
In the IE zone, the **interior floor area** of an **eating establishment** or **take-out eating establishment** may not exceed 1000 square metres.
This regulation does not apply to a cafeteria that is **ancillary** to a **post-secondary school**. [By-law: 1092-2021]
- (5) Financial Institution
In the IE zone, the **interior floor area** of a **financial institution** may not exceed 500 square metres.
- (6) Personal Service Shop
In the IE zone, the **interior floor area** of a **personal service shop** may not exceed 500 square metres.
- (7) Entertainment Place of Assembly and Sports Place of Assembly
In the IE zone, a **place of assembly**, **entertainment place of assembly** or **sports place of assembly** must be operated by or be in association with a **post-secondary school**.
- (8) Retail Store
In the IE zone, the **interior floor area** of a **retail store** may not exceed 500 square metres.
- (9) Day Nursery
In the IE zone, the **interior floor area** of a **day nursery** may not exceed 500 square metres.
- (10) Community Centre
In the IE zone, a **community centre** may be no more than 5000 square metres in **gross floor area**.
- (11) Laboratory
In the IE zone, a **laboratory** must be operated by or be in association with a **post-secondary school**.
- (12) Public Parking Abutting a Lot in the Residential Zone Category
In the IE zone, **vehicle** access to the **public parking** may not be over any part of a **lot** in the Residential Zone category.
- (13) Size Restriction on Eating Establishments Near or Abutting a Lot in the Residential Zone Category
If a **lot** in the IE zone is within 6.1 metres of a **lot** in the Residential Zone category, the total **interior floor area** of all **eating establishments** and **take-out eating establishments** on the **lot** may not exceed 400 square metres.
- (14) Ambulance Depot
In the IE zone, an ambulance depot must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(15) Fire Hall

In the IE zone, a fire hall must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(16) Police Station

In the IE zone, a police station must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(17) Public Utility

In the IE Zone, a **public utility** may not be:

- (A) a sewage treatment plant;
- (B) a water filtration plant; or
- (C) an above-ground water reservoir.

(18) Public Utility

In the IE zone, a **public utility** must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setbacks** and permitted maximum height for a **building** in the IE zone if it is:

- (A) a hydro electrical transformer station; or [By-law: OMB PL130592 February 7, 2017]
- (B) a natural gas regulator station.

(19) Transportation Use

A **building** or **structure** on a **lot** in the IE zone and used as a **transportation use** must comply with all requirements for a **building** on that **lot**.

(20) Renewable Energy Production or Cogeneration Energy Production

In the IE zone, **renewable energy** production or **cogeneration energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(22) Secondary Suite

In the IE zone, a **secondary suite** must comply with the specific use regulations in Section 150.10.

(23) Place of Worship

In the IE zone, a **place of worship** must comply with the specific use regulations in Section 150.50.

80.30.30 Lot Requirements

80.30.30.20 Lot Frontage

(1) Minimum Lot Frontage

The required minimum **lot frontage** in the IE zone is 20.0 metres.

80.30.30.40 Lot Coverage

(1) Maximum Lot Coverage

In the IE zone, if a **lot**:

- (A) is in an area with a numerical value on the Lot Coverage Overlay Map, that numerical value is the permitted maximum **lot coverage**, as a percentage of the **lot area**; or
- (B) is not in an area with a numerical value on the Lot Coverage Overlay Map, the permitted maximum **lot coverage** is 35%.

80.30.40 Principal Building Requirements

80.30.40.10 Height

(1) Maximum Height

If a **lot** in the IE zone is in an area that has:

- (A) a numerical value following the letters 'HT' on the Height Overlay Map, the permitted maximum height of a **building** or **structure** on the **lot** is the numerical value following the letters 'HT' on the Height Overlay Map, in metres; or
- (B) no numerical value following the letters 'HT' on the Height Overlay Map, the permitted maximum height of a **building** or **structure** on the **lot** is 13.0 metres. [By-law: 420-2023]

(2) Height of Buildings and Structures - Green Roof

In the IE zone, a parapet wall for a **green roof** may exceed the permitted maximum height for a **building** by 2.0 metres.

80.30.40.40 Floor Area

(1) Floor Space Index

In the IE zone, the permitted maximum floor space index is:

- (A) the numerical value following the zone symbol on the Zoning By-law Map; or
- (B) 0.4, if the zone symbol is not followed by a numerical value on the Zoning By-law Map. [By-law: 0559-2014 (OMB PL130592)] [By-law: 1124-2018]

80.30.40.70 Setbacks

(1) Minimum Building Setbacks

In the IE zone the required minimum **building setback** from a **lot line** is the distance equal to half the height of the **building**.

80.30.40.80 Separation

(1) Separation Between Buildings

If two or more **buildings** are on a **lot** in the IE zone, the required minimum separation distance between all **main walls** of any two **buildings** is the greater of:

- (A) 20 metres; or
- (B) half of the total height of the two **buildings**.

80.30.80 Parking

80.30.80.10 Location

(1) Location Of Parking Spaces

In the IE zone, a surface **parking space** may not be in a **front yard**.

80.30.80.20 Setbacks

(1) Parking Space to be Set Back from a Lot Line

A **parking space** which is not located in a **building** or **structure** must be at least 0.5 metres from a **lot line**.

80.30.90 Loading

80.30.90.10 Location

(1) Loading Space Location Exemption

A **loading space** may not be in:

- (A) a **front yard**;
- (B) a **side yard** abutting a **street**; or
- (C) any yard that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

80.30.90.11 Location Exemptions

(1) Loading Space Location Exemption

In the IE Zone, if a **lawfully existing building** has a **lawful loading space** that does not comply with the **loading space** location requirements of regulation 80.30.90.10(1), that **lawful loading space** is exempt from the requirements of regulation 80.30.90.10(1).

80.30.150 Waste

80.30.150.1 General

(1) Storage of Waste

In the IE zone:

- (A) all waste and **recyclable material** must be stored in a wholly enclosed **building**, if a **building** is constructed pursuant to a building permit issued more than three years after May 9, 2013; and
- (B) if waste and **recyclable material** is stored in an **ancillary building**, the **ancillary building**:
 - (i) may not be in a **side yard** that abuts a **street** or in a **front yard**; and
 - (ii) must be at least:
 - (a) 7.5 metres from a **lot** in the Residential Zone category, Residential Apartment Zone category or Open Space Zone category; and
 - (b) 1.0 metres from all other **side lot lines** and **rear lot line**.

80.40 Institutional School Zone (IS)

80.40.1 General

80.40.1.10 Interpretation

(1) Application of This Section

The regulations in Section 80.40 apply to all lands, uses, **buildings** and **structures** in the IS zone.

80.40.20 Permitted Uses

80.40.20.1 General

(1) Existing Place of Worship

A **lawfully existing place of worship** on a lot in the IS zone is permitted on that lot, and:

- (A) any expansion or addition to the **lawfully existing place of worship building** must comply with Section 150.50 and the requirements for the IS zone; and
- (B) the **lawfully existing place of worship** may be replaced with a new **place of worship building** that complies with Section 150.50 and the requirements for the IS zone.

80.40.20.10 Permitted Use

(1) Use - IS Zone

In the IS zone, the following uses are permitted:

Municipal Shelter
Park
Private School
Public School
Recreation Use [By-law: 545-2019]

80.40.20.20 Permitted Use - with Conditions

(1) Use with Conditions - IS Zone

In the IS zone, the following uses are permitted if they comply with the specific conditions associated with the reference number(s) for each use in Clause 80.40.20.100:

Adult Education School (5)
Ambulance Depot (6)
Cogeneration Energy (11)
Community Centre (2)
Day Nursery (1)
Fire Hall (7)
Library (3)
Police Station (8)
Public Utility (9) (10)
Renewable Energy (11)
Secondary Suite (13)
Student Residence (4)
Transportation Use (14) [By-law: 545-2019]

80.40.20.100 Conditions

(1) **Day Nursery**

In the IS zone, a **day nursery**:

- (A) may have an **interior floor area** no greater than 40% of the area of the first **storey** of the **building** on the **lot**; and
- (B) must be located in a **building** with a **private school** or, a **public school**; or
- (C) be in a **building** that is or was originally constructed as a **public school**; and [By-law: 607-2015]
- (D) comply with the specific use regulations in Section 150.45. [By-law: 607-2015]

(2) **Community Centre**

In the IS zone, a **community centre** must:

- (A) be on a **lot** that fronts on a major **street** on the Policy Areas Overlay Map; and
- (B) have a **gross floor area** no greater than 2500 square metres.

(3) **Library**

In the IS zone, a library:

- (A) must be operated by or on behalf of the City of Toronto;
- (B) must be on a **lot** that fronts on a major **street** on the Policy Areas Overlay Map; and
- (C) may have a **gross floor area** no greater than 1500 square metres.

(4) **Student Residence**

In the IS zone, a **student residence** must be in a **building** operated by a **public school** or **private school** that is on the same **lot**.

(5) **Adult Education School**

In the IS zone, an adult education school must be:

- (A) in a **building** that has a **private school** or **public school** or in a **building** that is or was originally constructed as a **private school** or **public school**; and
- (B) funded by the Provincial or Federal government for:
 - (i) adult English or French as a second language courses delivered by district school boards;
 - (ii) literacy and basic skills programming delivered by community agencies or district school boards;
 - (iii) credit courses for adults delivered by district school boards;
 - (iv) continuing education programs, including general interest courses, delivered by district school boards;
 - (v) adult Aboriginal language programs delivered by district school boards; or
 - (vi) Canadian citizenship preparation programs delivered by district school boards.

(6) **Ambulance Depot**

In the IS zone, an ambulance depot must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(7) **Fire Hall**

In the IS zone, a fire hall must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(8) **Police Station**

In the IS zone, a police station must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or

- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(9) **Public Utility**

In the IS zone, a **public utility** may not be:

- (A) a sewage treatment plant;
- (B) a water filtration plant; or
- (C) an above-ground water reservoir.

(10) **Public Utility**

In the IS zone, a **public utility** must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setbacks** and permitted maximum height for a **building** in the IS zone if it is:

- (A) a hydro electrical transformer station; or [By-law: OMB PL130592 February 7, 2017]
- (B) a natural gas regulator station.

(11) **Renewable Energy Production or Cogeneration Energy Production**

In the IS zone, **renewable energy** production or **cogeneration energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(13) **Secondary Suite**

In the IS zone, a **secondary suite** must comply with the specific use regulations in Section 150.10.

(14) **Transportation Use**

A **building** or **structure** on a **lot** in the IS zone and used as a **transportation use** must comply with all requirements for a **building** on that **lot**.

80.40.30 Lot Requirements

80.40.30.10 Lot Area

(1) **Minimum Lot Area**

In the IS zone the required minimum **lot area** is 900 square metres.

80.40.30.20 Lot Frontage

(1) **Minimum Lot Frontage**

In the IS zone the required minimum **lot frontage** is 30.0 metres.

80.40.30.40 Lot Coverage

(1) **Maximum Lot Coverage**

In the IS zone, if a **lot**:

- (A) is in an area with a numerical value on the Lot Coverage Overlay Map, that numerical value is the permitted maximum **lot coverage**, as a percentage of the **lot area**; or
- (B) is not in an area with a numerical value on the Lot Coverage Overlay Map, the permitted maximum **lot coverage** is 35%.

80.40.40 Principal Building Requirements

80.40.40.10 Height

(1) **Maximum Height**

If a **lot** in the IS zone has:

- (A) a numerical value following the letters 'HT' on the Height Overlay Map, the permitted maximum height of a **building** or **structure** on that **lot** is the numerical value following the letters 'HT' on the Height Overlay Map, in metres; or
- (B) no numerical value following the letters 'HT' on the Height Overlay Map, the permitted maximum height of a **building** or **structure** on that **lot** is 14.0 metres. [By-law: 420-2023]

(2) **Height of Buildings and Structures - Green Roof**

In the IS zone, a parapet wall for a **green roof** may exceed the permitted maximum height for a **building** by 1.5 metres.

80.40.40.40 Floor Area

(1) **Floor Space Index**

In the IS zone, the permitted maximum floor space index is:

- (A) the numerical value following the zone symbol on the Zoning By-law Map; or
- (B) 0.7, if the zone symbol is not followed by a numerical value on the Zoning By-law Map. [By-law: 0559-2014 (OMB PL130592)] [By-law: 1124-2018]

80.40.40.70 Setbacks

(1) **Minimum Building Setbacks**

In the IS zone, the following required minimum **building setbacks** apply:

- (A) 7.5 metres from a **lot line** that abuts a **street**;
- (B) 7.5 metres from a **rear lot line**; and
- (C) 3.0 metres from a **side lot line**.

80.40.50 Yards

80.40.50.10 Landscaping

(1) **Landscaping on a Lot with a Public School, Private School**

In the IS zone, a **lot** with a **public school** or a **private school** is subject to the following:

- (A) a minimum 1.5 metre wide strip of **soft landscaping** must be provided along all **side lot lines** and **rear lot lines**; and
- (B) with the exception of areas used for play, **driveways**, parking, loading, and student drop-off and pick-up, a minimum 3.0 metre wide strip of **soft landscaping** must be provided along all **lot lines** abutting a **street**.

80.40.60 Ancillary Buildings and Structures

80.40.60.10 Location

(1) **Portable Classroom Buildings - Location**

In the IS zone, an portable classroom **building** may not be in a **front yard**.

80.40.60.20 Setbacks

(1) **Ancillary Building or Structure to be Set Back from a Street**

In the IS zone, no part of an **ancillary building** or **structure** may be closer to a **lot line** that abuts a **street** than the main **building** on the **lot**.

(2) **Portable Classroom Buildings to be Set Back**

In the IS zone, a portable classroom **building** must be set back from a **side lot line** or **rear lot line** a distance equal to:

- (A) 7.5 metres if the **lot line** abuts a **lot** in the Residential Zone category or Residential Apartment Zone category; and
- (B) half the height of the portable classroom **building** in all other cases.

80.40.60.40 Height

(1) **Portable Classroom Buildings - Height**

In the IS zone, a portable classroom **building** must be less than 4.0 metres in height.

80.40.60.70 Lot Coverage

(1) **Portable Classroom Buildings - Coverage**

In the IS zone, in addition to complying with regulation 80.40.30.40(1), the **lot area** covered by portable classrooms may be no more than 50% of the **lot area** covered by the main school **building**.

80.40.80 Parking

80.40.80.1 General

(1) **Parking Lots - Public School, Private School**

In the IS zone:

- (A) an area used for the parking or storage of **vehicles** must be separated from any **lot line** that does not abut a **street** or **lane** by a minimum 1.5 metre wide strip of **soft landscaping**; and
- (B) if an area used for the parking or storage of **vehicles** is located in a yard that abuts a **lot** in the Residential Zone category, a fence must be installed along the entire portion of the **lot line** abutting that **lot**.

80.40.80.10 Location

(1) **Parking Space Location**

In the IS zone, a **parking space** must be in a **side yard** or **rear yard**.

80.40.80.20 Setbacks

(1) **Parking Space to be Set Back from a Lot Line**

In the IS zone, a **parking space** which is not in a **building** or **structure** must be at least 0.5 metres from a **lot line**.

(2) **Parking Area to be Set Back from a Lot in the Residential Zone Category**

In the IS zone, an area used for the parking or storage of **vehicles** must be set back a minimum of 1.5 metres from a **lot line** that abuts a **lot** in the Residential Zone category.

80.40.80.40 Access to Parking Space

(1) Access to Parking Space

In the IS zone, **vehicle** access to a **parking space** may not be over a **lot** in the Residential Zone category or Residential Apartment Zone category.

80.40.90 Loading

80.40.90.1 General

(1) Public School, Private School - Pick-Up / Drop-Off Areas

For a **public school** or **private school** constructed on a **lot** in the IS zone pursuant to a building permit issued three years after May 9, 2013, a **vehicle** student pick-up and drop-off area must be provided on the same **lot**.

80.40.90.10 Location

(1) Loading Space

In the IS zone, a **loading space** must be on the **lot** in a **side yard** or **rear yard** that does not abut a **lot** in the Residential Zone category or Residential Apartment Zone category.

80.40.90.40 Access to Loading Space

(1) Access to a Loading Space

In the IS zone, **vehicle** access to a **loading space** may not be over a **lot** in the Residential Zone category or Residential Apartment Zone category.

80.40.150 Waste

80.40.150.1 General

(1) Storage of Waste

In the IS zone:

- (A) all waste and **recyclable material** must be stored in a wholly enclosed **building**, if a **building** is constructed pursuant to a building permit issued more than three years after May 9, 2013; and
- (B) the part of the **building** containing the waste and **recyclable material** must be at least 7.5 metres from a **lot** in the Residential Zone category or Open Space Zone category.

80.50 Institutional Place of Worship Zone (IPW)

80.50.1 General

80.50.1.10 Interpretation

(1) Application of This Section

The regulations in Section 80.50 apply to all lands, uses, **buildings** and **structures** in the IPW zone.

80.50.20 Permitted Uses

80.50.20.10 Permitted Use

(1) Use - IPW Zone

In the IPW zone, the following uses are permitted:

Municipal Shelter

Park

Place of Worship

Religious Education Use

Religious Residence [By-law: 545-2019]

80.50.20.20 Permitted Use - with Conditions

(1) Use with Conditions - IPW Zone

In the IPW zone, the following uses are permitted if they comply with the specific conditions associated with the reference number(s) for each use in Clause 80.50.20.100:

Ambulance Depot (8)

Cogeneration Energy (13)

Community Centre (3)

Day Nursery (1)

Dwelling Unit (7)

Fire Hall (9)

Library (4)

Place of Assembly (2)

Police Station (10)

Public Utility (11) (12)

Renewable Energy (13)

Retail Store (6)

Secondary Suite (14)

Transportation Use (15) [By-law: 545-2019]

80.50.20.100 Conditions

(1) Day Nursery

In the IPW zone, a **day nursery**:

(A) must be in a **building** with a **place of worship**; and

(B) may have an **interior floor area** no greater than 50% of the **gross floor area** of the first **storey** of the **building**; and [By-law: 607-2015]

(C) must comply with the specific use regulations in Section 150.45. [By-law: 607-2015]

(2) Place of Assembly

In the IPW zone, a **place of assembly** must be on a **lot** that has a minimum floor space index value of 6.0 or greater.

(3) **Community Centre**

In the IPW zone, a **community centre** must:

- (A) be on a **lot** that fronts on a major **street** on the Policy Areas Overlay Map; and
- (B) have a **gross floor area** that is no greater than 1500 square metres.

(4) **Library**

In the IPW zone, a library:

- (A) must be on a **lot** that fronts a major **street** on the Policy Areas Overlay Map; and
- (B) may have a **gross floor area** no greater than 400 square metres.

(6) **Retail Store**

In the IPW zone, a **retail store**:

- (A) must be associated with a **place of worship**; and
- (B) may not have an **interior floor area** exceeding 25 square metres.

(7) **Dwelling Unit**

In the IPW zone, a **place of worship** may have one **dwelling unit**, if:

- (A) the **dwelling unit** is **ancillary** to the **place of worship**;
- (B) the **lot** abuts a **lot** in the Residential Zone category, Residential Apartment Zone category, Commercial Residential Zone category, Commercial Residential Employment Zone category or Institutional Zone category; and
- (C) the **interior floor area** of the **dwelling unit** is no more than 250 square metres.

(8) **Ambulance Depot**

In the IPW zone, an ambulance depot must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(9) **Fire Hall**

In the IPW zone, a fire hall must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(10) **Police Station**

In the IPW zone, a police station must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(11) **Public Utility**

In the IPW zone, a **public utility** may not be:

- (A) a sewage treatment plant;
- (B) a water filtration plant; and
- (C) an above-ground water reservoir.

(12) **Public Utility**

In the IPW zone, a **public utility** must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setbacks** and permitted maximum height for a **building** in the IPW zone if it is:

(A) a hydro electrical transformer station; or [By-law: OMB PL130592 February 7, 2017]

(B) a natural gas regulator station.

(13) **Renewable Energy Production or Cogeneration Energy Production**

In the IPW zone, **renewable energy** production or **cogeneration energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(14) **Secondary Suite**

In the IPW zone, a **secondary suite** must comply with the specific use regulations in Section 150.10.

(15) **Transportation Use**

A **building** or **structure** on a **lot** in the IPW zone and used as a **transportation use** must comply with all requirements for a **building** on that **lot**.

80.50.30 Lot Requirements

80.50.30.20 Lot Frontage

(1) **Minimum Lot Frontage**

The required minimum **lot frontage** in the IPW zone is 20.0 metres.

80.50.30.40 Lot Coverage

(1) **Maximum Lot Coverage**

In the IPW zone, if a **lot**:

(A) is in an area with a numerical value on the Lot Coverage Overlay Map, that numerical value is the permitted maximum **lot coverage**, as a percentage of the **lot area**; or

(B) is not in an area with a numerical value on the Lot Coverage Overlay Map, the permitted maximum **lot coverage** is 40%.

80.50.40 Principal Building Requirements

80.50.40.10 Height

(1) **Maximum Height**

If a **lot** in the IPW zone is in an area that has:

(A) a numerical value following the letters 'HT' on the Height Overlay Map, the permitted maximum height of a **building** or **structure** on the **lot** is the numerical value following the letters 'HT' on the Height Overlay Map, in metres; or

(B) no numerical value following the letters 'HT' on the Height Overlay Map, the permitted maximum height of a **building** or **structure** on the **lot** is 15.0 metres.

(2) **Height of Buildings and Structures - Green Roof**

In the IPW zone, a parapet wall for a **green roof** may exceed the permitted maximum height for a **building** by 1.5 metres.

(3) **Building Height - Architectural Elements**

In the IPW zone, a minaret, steeple or similar architectural element on a **place of worship building** may exceed the permitted maximum height of the **building** by 40%, if the horizontal area of the minaret, steeple or similar architectural element is no more than 30.0 square metres.

80.50.40.11 Height Exemptions

(1) **Lawfully Existing Place of Worship - Building Height - Architectural Elements**

In the IPW zone, if a **lawfully existing place of worship** has a **lawful** architectural element such as a minaret, steeple or similar architectural element that exceeds the permitted maximum height for a **building**, the permitted maximum height for that architectural element is its **lawful** height, for that **lawfully existing place of worship**.

80.50.40.40 Floor Area

(1) **Floor Space Index**

In the IPW zone, the permitted maximum floor space index is:

- (A) the numerical value following the zone symbol on the Zoning By-law Map; or
- (B) 0.8, if the zone symbol is not followed by a numerical value on the Zoning By-law Map. [By-law: 0559-2014 (OMB PL130592)] [By-law: 1124-2018]

80.50.40.60 Permitted Encroachments

(1) **Encroachments into a Front Yard or Side Yard Abutting a Street**

In the IPW zone, a platform without **main walls** such as a porch, a canopy, exterior stairs, pedestrian access ramp or an elevating device, may encroach into a **front yard** or a **side yard** abutting a **street**, if no part is more than 2.0 metres from the **main wall**.

80.50.40.70 Setbacks

(1) **Minimum Front Yard Setback**

In the IPW zone, the required minimum **building setback** from a **front lot line** is:

- (A) 3.0 metres if the **street** is a major **street** on the Policy Areas Overlay Map; and
- (B) for all other **streets**, the greater of:
 - (i) 7.5 metres; or
 - (ii) a distance equal to half the height of the **building**.

(2) **Minimum Side Yard Setback**

In the IPW zone, the required minimum **building setback** from a **side lot line** that does not abut a **street** is the greater of:

- (A) 3.0 metres; or
- (B) the distance equal to half the height of the **building**.

(3) **Minimum Side Yard Setback from a Street**

In the IPW zone, the required minimum **building setback** from a **side lot line** that abuts a **street** is the greater of:

- (A) 6.0 metres; or
- (B) the distance equal to half the height of the **building**.

(4) **Minimum Rear Yard Setback**

In the IPW zone, the required minimum **rear yard setback** is the greater of:

- (A) 7.5 metres; or
- (B) the distance equal to half the height of the **building**.

80.50.50 Yards

80.50.50.10 Landscaping

(1) **Front Yard Landscaping**

Despite regulation 5.10.50.10(1), in the IPW zone, all parts of the **front yard** not used as a **driveway** must be **landscaping**, and a minimum of 75% of the required **landscaping** must be **soft landscaping**.

(2) **Abutting the Residential Zone Category or Residential Apartment Zone Category**

A **lot** in the IPW zone abuts that a **lot** in the Residential Zone category or Residential Apartment Zone category must have a minimum 1.5 metre wide strip of **soft landscaping** along the entire length of the part of the **lot line** abutting that **lot**.

80.50.60 Ancillary Buildings and Structures

80.50.60.20 Setbacks

(1) **Ancillary Building or Structure to be Set Back from the Street**

In the IPW zone, an **ancillary building** or **structure** may be no closer to a **lot line** that abuts a **street** than the main **building** on the **lot**.

(2) **Side Yard Setback and Rear Yard Setback - Ancillary Buildings and Structures**

In the IPW zone, an **ancillary building** and **structure** must be set back from a **rear lot line** or **side lot line** the greater of:

(A) 1.5 metres; or

(B) half the height of the **ancillary building** or **structure**.

80.50.60.70 Lot Coverage

(1) **Lot coverage - Ancillary Buildings and Structures**

In the IPW zone, a maximum of 15% of the **lot area** may be covered by **ancillary buildings** and **structures**.

80.50.80 Parking

80.50.80.10 Location

(1) **Parking Space Location Restriction**

In the IPW zone, a **parking space** may not be in a **front yard**.

80.50.80.20 Setbacks

(1) **Parking Space to be Set Back from a Lot Line**

A **parking space** which is not in a **building** or **structure** must be at least 0.5 metres from a **lot line**.

80.50.80.40 Access to Parking Space

(1) **Access to Parking Space**

In the IPW zone, **vehicle** access to a **parking space** may not be over any **lot** in the Residential Zone category or Residential Apartment Zone category.

80.50.150 Waste

80.50.150.1 General

(1) **Waste Storage**

In the IPW zone, all waste and **recyclable material** must be stored in a wholly enclosed **building**, if a **building** is constructed pursuant to a building permit issued more than three years after May 9, 2013.